Geneva Act of the Lisbon Agreement on Appellations of Origin and Geographical Indications and Regulations Under the Geneva Act of the Lisbon Agreement

of May 20, 2015

Treaties



2015

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GENEVA ACT OF THE LISBON AGREEMENT ON APPELLATIONS OF ORIGIN AND GEOGRAPHICAL INDICATIONS AND REGULATIONS UNDER THE GENEVA ACT OF THE LISBON AGREEMENT

of May 20, 2015

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PREFACE

The present publication contains the texts of the Geneva Act of the Lisbon Agreement on Appellations of Origin and Geographical Indications and the Regulations under the Geneva Act, as well as the agreed statements adopted at the same time as the Act and Regulations (see footnotes on pages 15 and 16).

The Geneva Act and its Regulations are not yet in force. The Lisbon Agreement currently in force, together with its Regulations and Administrative Instructions, are contained in WIPO publication No. 264.

Geneva Act of the Lisbon Agreement on Appellations of Origin and Geographical Indications

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CHAPTER I
INTRODUCTORY AND GENERAL PROVISIONS

Article 1
Abbreviated Expressions

For the purposes of this Act, unless expressly stated otherwise:

(i) "Lisbon Agreement" means the Lisbon Agreement for the Protection of Appellations of Origin and their International Registration of October 31, 1958;

(ii) "1967 Act" means the Lisbon Agreement as revised at Stockholm on July 14, 1967, and amended on September 28, 1979;

(iii) "this Act" means the Lisbon Agreement on Appellations of Origin and Geographical Indications, as established by the present Act;

(iv) "Regulations" means the Regulations as referred to in Article 25;

(v) "Paris Convention" means the Paris Convention for the Protection of Industrial Property of March 20, 1883, as revised and amended;

(vi) "appellation of origin" means a denomination as referred to in Article 2(1)(i);

(vii) "geographical indication" means an indication as referred to in Article 2(1)(ii);

(viii) "International Register" means the International Register maintained by the International Bureau in accordance with Article 4 as the official collection of data concerning international registrations of appellations of origin and geographical indications, regardless of the medium in which such data are maintained;

(ix) "international registration" means an international registration recorded in the International Register;

(x) "application" means an application for international registration;

(xi) "registered" means entered in the International Register in accordance with this Act;

(xii) "geographical area of origin" means a geographical area as referred to in Article 2(2);

(xiii) "trans-border geographical area" means a geographical area situated in, or covering, adjacent Contracting Parties;

(xiv) "Contracting Party" means any State or intergovernmental organization party to this Act;

(xv) "Contracting Party of Origin" means the Contracting Party where the geographical area of origin is situated or the Contracting Parties where the trans-border geographical area of origin is situated;

(xvi) "Competent Authority" means an entity designated in accordance with Article 3;

(xvii) "beneficiaries" means the natural persons or legal entities entitled under the law of the Contracting Party of Origin to use an appellation of origin or a geographical indication;

(xviii) "intergovernmental organization" means an intergovernmental organization eligible to become party to this Act in accordance with Article 28(1)(iii);

(xix) "Organization" means the World Intellectual Property Organization;

(xx) "Director General" means the Director General of the Organization;

(xxi) "International Bureau" means the International Bureau of the Organization.

Article 2
Subject-Matter

(1) *[Appellations of Origin and Geographical Indications]* This Act applies in respect of:

(i) any denomination protected in the Contracting Party of Origin consisting of or containing the name of a geographical area, or another denomination known as referring to such area, which serves to designate a good as originating in that geographical area, where the quality or characteristics of the good are due exclusively or essentially to the geographical environment, including natural and human factors, and which has given the good its reputation; as well as

(ii) any indication protected in the Contracting Party of Origin consisting of or containing the name of a geographical area, or another indication known as referring to such area, which identifies a good as originating in that geographical area, where a given quality, reputation or other characteristic of the good is essentially attributable to its geographical origin.

(2) *[Possible Geographical Areas of Origin]* A geographical area of origin as described in paragraph (1) may consist of the entire territory of the Contracting Party of Origin or a region, locality or place in the Contracting Party of Origin. This does not exclude the application of this Act in respect of a geographical area of origin, as described in paragraph (1), consisting of a trans-border geographical area, or a part thereof.

Article 3
Competent Authority

Each Contracting Party shall designate an entity which shall be responsible for the administration of this Act in its territory and for communications with the International Bureau under this Act and the Regulations. The Contracting Party shall notify the name and contact details of such Competent Authority to the International Bureau, as specified in the Regulations.

Article 4
International Register

The International Bureau shall maintain an International Register recording international registrations effected under this Act, under the Lisbon Agreement and the 1967 Act, or under both, and data relating to such international registrations.

CHAPTER II
APPLICATION AND INTERNATIONAL REGISTRATION

Article 5
Application

(1) *[Place of Filing]* Applications shall be filed with the International Bureau.

(2) *[Application Filed by Competent Authority]* Subject to paragraph (3), the application for the international registration of an appellation of origin or a geographical indication shall be filed by the Competent Authority in the name of:

(i) the beneficiaries; or

(ii) a natural person or legal entity having legal standing under the law of the Contracting Party of Origin to assert the rights of the beneficiaries or other rights in the appellation of origin or geographical indication.

(3) *[Application Filed Directly]* (a) Without prejudice to paragraph (4), if the legislation of the Contracting Party of Origin so permits, the application may be filed by the beneficiaries or by a natural person or legal entity referred to in paragraph (2)(ii).

(b) Subparagraph (a) applies subject to a declaration from the Contracting Party that its legislation so permits. Such declaration may be made by the Contracting Party at the time of deposit of its instrument of ratification or accession or at any later time. Where the declaration is made at the time of the deposit of its instrument of ratification or accession, it shall take effect upon the entry into force of this Act with respect to that Contracting Party. Where the declaration is made after the entry into force of this Act with respect to the Contracting Party, it shall take effect three months after the date on which the Director General has received the declaration.

(4) *[Possible Joint Application in the Case of a Trans-border Geographical Area]* In case of a geographical area of origin consisting of a trans-border geographical area, the adjacent Contracting Parties may, in accordance with their agreement, file an application jointly through a commonly designated Competent Authority.

(5) *[Mandatory Contents]* The Regulations shall specify the mandatory particulars that must be included in the application, in addition to those specified in Article 6(3).

(6) *[Optional Contents]* The Regulations may specify the optional particulars that may be included in the application.

Article 6
International Registration

(1) *[Formal Examination by the International Bureau]* Upon receipt of an application for the international registration of an appellation of origin or a geographical indication in due form, as specified in the Regulations, the International Bureau shall register the appellation of origin, or the geographical indication, in the International Register.

(2) *[Date of International Registration]* Subject to paragraph (3), the date of the international registration shall be the date on which the application was received by the International Bureau.

(3) *[Date of International Registration Where Particulars Missing]* Where the application does not contain all the following particulars:

(i) the identification of the Competent Authority or, in the case of Article 5(3), the applicant or applicants;

(ii) the details identifying the beneficiaries and, where applicable, the natural person or legal entity referred to in Article 5(2)(ii);

(iii) the appellation of origin, or the geographical indication, for which international registration is sought;

(iv) the good or goods to which the appellation of origin, or the geographical indication, applies;

the date of the international registration shall be the date on which the last of the missing particulars is received by the International Bureau.

(4) *[Publication and Notification of International Registrations]* The International Bureau shall, without delay, publish each international registration and notify the Competent Authority of each Contracting Party of the international registration.

(5) *[Date of Effect of International Registration]* (a) Subject to subparagraph (b), a registered appellation of origin or geographical indication shall, in each Contracting Party that has not refused protection in accordance with Article 15, or that has sent to the International Bureau a notification of grant of protection in accordance with Article 18, be protected from the date of the international registration.

(b) A Contracting Party may, in a declaration, notify the Director General that, in accordance with its national or regional legislation, a registered appellation of origin or geographical indication is protected from a date that is mentioned in the declaration, which date shall however not be later than the date of expiry of the time limit for refusal specified in the Regulations in accordance with Article 15(1)(a).

Article 7
Fees

(1) *[International Registration Fee]* International registration of each appellation of origin, and each geographical indication, shall be subject to payment of the fee specified in the Regulations.

(2) *[Fees for Other Entries in the International Register]* The Regulations shall specify the fees to be paid in respect of other entries in the International Register and for the supply of extracts, attestations, or other information concerning the contents of the international registration.

(3) *[Fee Reductions]* Reduced fees shall be established by the Assembly in respect of certain international registrations of appellations of origin, and in respect of certain international registrations of geographical indications, in particular those in respect of which the Contracting Party of Origin is a developing country or a least-developed country.

(4) *[Individual Fee]* (a) Any Contracting Party may, in a declaration, notify the Director General that the protection resulting from international registration shall extend to it only if a fee is paid to cover its cost of substantive examination of the international registration. The amount of such individual fee shall be indicated in the declaration and can be changed in further declarations. The said amount may not be higher than the equivalent of the amount required under the national or regional legislation of the Contracting Party diminished by the savings resulting from the international procedure. Additionally, the Contracting Party may, in a declaration, notify

the Director General that it requires an administrative fee relating to the use by the beneficiaries of the appellation of origin or the geographical indication in that Contracting Party.

(b) Non-payment of an individual fee shall, in accordance with the Regulations, have the effect that protection is renounced in respect of the Contracting Party requiring the fee.

Article 8
Period of Validity of International Registrations

(1) *[Dependency]* International registrations shall be valid indefinitely, on the understanding that the protection of a registered appellation of origin or geographical indication shall no longer be required if the denomination constituting the appellation of origin, or the indication constituting the geographical indication, is no longer protected in the Contracting Party of Origin.

(2) *[Cancellation]* (a) The Competent Authority of the Contracting Party of Origin, or, in the case of Article 5(3), the beneficiaries or the natural person or legal entity referred to in Article 5(2)(ii) or the Competent Authority of the Contracting Party of Origin, may at any time request the International Bureau to cancel the international registration concerned.

(b) In case the denomination constituting a registered appellation of origin, or the indication constituting a registered geographical indication, is no longer protected in the Contracting Party of Origin, the Competent Authority of the Contracting Party of Origin shall request cancellation of the international registration.

CHAPTER III
PROTECTION

Article 9
Commitment to Protect

Each Contracting Party shall protect registered appellations of origin and geographical indications on its territory, within its own legal system and practice but in accordance with the terms of this Act, subject to any refusal, renunciation, invalidation or cancellation that may become effective with

respect to its territory, and on the understanding that Contracting Parties that do not distinguish in their national or regional legislation as between appellations of origin and geographical indications shall not be required to introduce such a distinction into their national or regional legislation.

Article 10
Protection Under Laws of Contracting Parties or Other Instruments

(1) *[Form of Legal Protection]* Each Contracting Party shall be free to choose the type of legislation under which it establishes the protection stipulated in this Act, provided that such legislation meets the substantive requirements of this Act.

(2) *[Protection Under Other Instruments]* The provisions of this Act shall not in any way affect any other protection a Contracting Party may accord in respect of registered appellations of origin or registered geographical indications under its national or regional legislation, or under other international instruments.

(3) *[Relation to Other Instruments]* Nothing in this Act shall derogate from any obligations that Contracting Parties have to each other under any other international instruments, nor shall it prejudice any rights that a Contracting Party has under any other international instruments.

Article 11
Protection in Respect of Registered Appellations of Origin and Geographical Indications

(1) *[Content of Protection]* Subject to the provisions of this Act, in respect of a registered appellation of origin or a registered geographical indication, each Contracting Party shall provide the legal means to prevent:

(a) use of the appellation of origin or the geographical indication

(i) in respect of goods of the same kind as those to which the appellation of origin or the geographical indication applies, not originating in the geographical area of origin or not complying with any other applicable requirements for using the appellation of origin or the geographical indication;

(ii) in respect of goods that are not of the same kind as those to which the appellation of origin or geographical indication applies or services, if such use would indicate or suggest a connection between those goods or services and the beneficiaries of the appellation of origin or the geographical indication, and would be likely to damage their interests, or, where applicable, because of the reputation of the appellation of origin or geographical indication in the Contracting Party concerned, such use would be likely to impair or dilute in an unfair manner, or take unfair advantage of, that reputation;

(b) any other practice liable to mislead consumers as to the true origin, provenance or nature of the goods.

(2) *[Content of Protection in Respect of Certain Uses]* Paragraph (1)(a) shall also apply to use of the appellation of origin or geographical indication amounting to its imitation, even if the true origin of the goods is indicated, or if the appellation of origin or the geographical indication is used in translated form or is accompanied by terms such as "style", "kind", "type", "make", "imitation", "method", "as produced in", "like", "similar" or the like[1].

(3) *[Use in a Trademark]* Without prejudice to Article 13(1), a Contracting Party shall, *ex officio* if its legislation so permits or at the request of an interested party, refuse or invalidate the registration of a later trademark if use of the trademark would result in one of the situations covered by paragraph (1).

[1] Agreed Statement concerning Article 11(2): For the purposes of this Act, it is understood that where certain elements of the denomination or indication constituting the appellation of origin or geographical indication have a generic character in the Contracting Party of Origin, their protection under this paragraph shall not be required in the other Contracting Parties. For greater certainty, a refusal or invalidation of a trademark, or a finding of infringement, in the Contracting Parties under the terms of Article 11 cannot be based on the component that has a generic character.

Article 12
Protection Against Becoming Generic

Subject to the provisions of this Act, registered appellations of origin and registered geographical indications cannot be considered to have become generic[2] in a Contracting Party.

Article 13
Safeguards in Respect of Other Rights

(1) *[Prior Trademark Rights]* The provisions of this Act shall not prejudice a prior trademark applied for or registered in good faith, or acquired through use in good faith, in a Contracting Party. Where the law of a Contracting Party provides a limited exception to the rights conferred by a trademark to the effect that such a prior trademark in certain circumstances may not entitle its owner to prevent a registered appellation of origin or geographical indication from being granted protection or used in that Contracting Party, protection of the registered appellation of origin or geographical indication shall not limit the rights conferred by that trademark in any other way.

(2) *[Personal Name Used in Business]* The provisions of this Act shall not prejudice the right of any person to use, in the course of trade, that person's name or the name of that person's predecessor in business, except where such name is used in such a manner as to mislead the public.

(3) *[Rights Based on a Plant Variety or Animal Breed Denomination]* The provisions of this Act shall not prejudice the right of any person to use a plant variety or animal breed denomination in the course of trade, except where such plant variety or animal breed denomination is used in such a manner as to mislead the public.

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[2] Agreed Statement concerning Article 12: For the purposes of this Act, it is understood that Article 12 is without prejudice to the application of the provisions of this Act concerning prior use, as, prior to international registration, the denomination or indication constituting the appellation of origin or geographical indication may already, in whole or in part, be generic in a Contracting Party other than the Contracting Party of Origin, for example, because the denomination or indication, or part of it, is identical with a term customary in common language as the common name of a good or service in such Contracting Party, or is identical with the customary name of a grape variety in such Contracting Party.

(4) *[Safeguards in the Case of Notification of Withdrawal of Refusal or a Grant of Protection]* Where a Contracting Party that has refused the effects of an international registration under Article 15 on the ground of use under a prior trademark or other right, as referred to in this Article, notifies the withdrawal of that refusal under Article 16 or a grant of protection under Article 18, the resulting protection of the appellation of origin or geographical indication shall not prejudice that right or its use, unless the protection was granted following the cancellation, non-renewal, revocation or invalidation of the right.

Article 14
Enforcement Procedures and Remedies

Each Contracting Party shall make available effective legal remedies for the protection of registered appellations of origin and registered geographical indications and provide that legal proceedings for ensuring their protection may be brought by a public authority or by any interested party, whether a natural person or a legal entity and whether public or private, depending on its legal system and practice.

CHAPTER IV
REFUSAL AND OTHER ACTIONS IN RESPECT OF INTERNATIONAL REGISTRATIONS

Article 15
Refusal

(1) *[Refusal of Effects of International Registration]* (a) Within the time limit specified in the Regulations, the Competent Authority of a Contracting Party may notify the International Bureau of the refusal of the effects of an international registration in its territory. The notification of refusal may be made by the Competent Authority *ex officio*, if its legislation so permits, or at the request of an interested party.

(b) The notification of refusal shall set out the grounds on which the refusal is based.

(2) *[Protection Under Other Instruments]* The notification of a refusal shall not be detrimental to any other protection that may be available, in accordance with Article 10(2), to the denomination or indication concerned in the Contracting Party to which the refusal relates.

(3) *[Obligation to Provide Opportunity for Interested Parties]* Each Contracting Party shall provide a reasonable opportunity, for anyone whose interests would be affected by an international registration, to request the Competent Authority to notify a refusal in respect of the international registration.

(4) *[Registration, Publication and Communication of Refusals]* The International Bureau shall record the refusal and the grounds for the refusal in the International Register. It shall publish the refusal and the grounds for the refusal and shall communicate the notification of refusal to the Competent Authority of the Contracting Party of Origin or, where the application has been filed directly in accordance with Article 5(3), the beneficiaries or the natural person or legal entity referred to in Article 5(2)(ii) as well as the Competent Authority of the Contracting Party of Origin.

(5) *[National Treatment]* Each Contracting Party shall make available to interested parties affected by a refusal the same judicial and administrative remedies that are available to its own nationals in respect of the refusal of protection for an appellation of origin or a geographical indication.

Article 16
Withdrawal of Refusal

A refusal may be withdrawn in accordance with the procedures specified in the Regulations. A withdrawal shall be recorded in the International Register.

Article 17
Transitional Period

(1) *[Option to Grant Transitional Period]* Without prejudice to Article 13, where a Contracting Party has not refused the effects of an international registration on the ground of prior use by a third party or has withdrawn such refusal or has notified a grant of protection, it may, if its legislation so permits, grant a defined period as specified in the Regulations, for terminating such use.

(2) *[Notification of a Transitional Period]* The Contracting Party shall notify the International Bureau of any such period, in accordance with the procedures specified in the Regulations.

Article 18
Notification of Grant of Protection

The Competent Authority of a Contracting Party may notify the International Bureau of the grant of protection to a registered appellation of origin or geographical indication. The International Bureau shall record any such notification in the International Register and publish it.

Article 19
Invalidation

(1) *[Opportunity to Defend Rights]* Invalidation of the effects, in part or in whole, of an international registration in the territory of a Contracting Party may be pronounced only after having given the beneficiaries an opportunity to defend their rights. Such opportunity shall also be given to the natural person or legal entity referred to in Article 5(2)(ii).

(2) *[Notification, Recordal and Publication]* The Contracting Party shall notify the invalidation of the effects of an international registration to the International Bureau, which shall record the invalidation in the International Register and publish it.

(3) *[Protection Under Other Instruments]* Invalidation shall not be detrimental to any other protection that may be available, in accordance with Article 10(2), to the denomination or indication concerned in the Contracting Party that invalidated the effects of the international registration.

Article 20
Modifications and Other Entries in the International Register

Procedures for the modification of international registrations and other entries in the International Register shall be specified in the Regulations.

CHAPTER V
ADMINISTRATIVE PROVISIONS

Article 21
Membership of the Lisbon Union

The Contracting Parties shall be members of the same Special Union as the States party to the Lisbon Agreement or the 1967 Act, whether or not they are party to the Lisbon Agreement or the 1967 Act.

Article 22
Assembly of the Special Union

(1) *[Composition]* (a) The Contracting Parties shall be members of the same Assembly as the States party to the 1967 Act.

(b) Each Contracting Party shall be represented by one delegate, who may be assisted by alternate delegates, advisors and experts.

(c) Each delegation shall bear its own expenses.

(2) *[Tasks]* (a) The Assembly shall:

(i) deal with all matters concerning the maintenance and development of the Special Union and the implementation of this Act;

(ii) give directions to the Director General concerning the preparation of revision conferences referred to in Article 26(1), due account being taken of any comments made by those members of the Special Union which have not ratified or acceded to this Act;

(iii) amend the Regulations;

(iv) review and approve the reports and activities of the Director General concerning the Special Union, and give him or her all necessary instructions concerning matters within the competence of the Special Union;

(v) determine the program and adopt the biennial budget of the Special Union, and approve its final accounts;

(vi) adopt the financial Regulations of the Special Union;

(vii) establish such committees and working groups as it deems appropriate to achieve the objectives of the Special Union;

(viii) determine which States, intergovernmental and non-governmental organizations shall be admitted to its meetings as observers;

(ix) adopt amendments to Articles 22 to 24 and 27;

(x) take any other appropriate action to further the objectives of the Special Union and perform any other functions as are appropriate under this Act.

(b) With respect to matters which are of interest also to other Unions administered by the Organization, the Assembly shall make its decisions after having heard the advice of the Coordination Committee of the Organization.

(3) *[Quorum]* (a) One-half of the members of the Assembly which have the right to vote on a given matter shall constitute a quorum for the purposes of the vote on that matter.

(b) Notwithstanding the provisions of subparagraph (a), if, in any session, the number of the members of the Assembly which are States, have the right to vote on a given matter and are represented is less than one-half but equal to or more than one-third of the members of the Assembly which are States and have the right to vote on that matter, the Assembly may make decisions but, with the exception of decisions concerning its own procedure, all such decisions shall take effect only if the conditions set forth hereinafter are fulfilled. The International Bureau shall communicate the said decisions to the members of the Assembly which are States, have the right to vote on the said matter and were not represented and shall invite them to express in writing their vote or abstention within a period of three months from the date of the communication. If, at the expiration of this period, the number of such members having thus expressed their vote or abstention attains the number of the members which was lacking for attaining the quorum in the session itself, such decisions shall take effect provided that at the same time the required majority still obtains.

(4) *[Taking Decisions in the Assembly]* (a) The Assembly shall endeavor to take its decisions by consensus.

(b) Where a decision cannot be arrived at by consensus, the matter at issue shall be decided by voting. In such a case,

(i) each Contracting Party that is a State shall have one vote and shall vote only in its own name; and

(ii) any Contracting Party that is an intergovernmental organization may vote, in place of its member States, with a number of votes equal to the number of its member States which are party to this Act. No such intergovernmental organization shall participate in the vote if any one of its member States exercises its right to vote, and *vice versa*.

(c) On matters concerning only States that are bound by the 1967 Act, Contracting Parties that are not bound by the 1967 Act shall not have the right to vote, whereas, on matters concerning only Contracting Parties, only the latter shall have the right to vote.

(5) *[Majorities]* (a) Subject to Articles 25(2) and 27(2), the decisions of the Assembly shall require two-thirds of the votes cast.

(b) Abstentions shall not be considered as votes.

(6) *[Sessions]* (a) The Assembly shall meet upon convocation by the Director General and, in the absence of exceptional circumstances, during the same period and at the same place as the General Assembly of the Organization.

(b) The Assembly shall meet in extraordinary session upon convocation by the Director General, either at the request of one-fourth of the members of the Assembly or on the Director General's own initiative.

(c) The agenda of each session shall be prepared by the Director General.

(7) *[Rules of Procedure]* The Assembly shall adopt its own rules of procedure.

Article 23
International Bureau

(1) *[Administrative Tasks]* (a) International registration and related duties, as well as all other administrative tasks concerning the Special Union, shall be performed by the International Bureau.

(b) In particular, the International Bureau shall prepare the meetings and provide the Secretariat of the Assembly and of such committees and working groups as may have been established by the Assembly.

(c) The Director General shall be the Chief Executive of the Special Union and shall represent the Special Union.

(2) *[Role of the International Bureau in the Assembly and Other Meetings]* The Director General and any staff member designated by him shall participate, without the right to vote, in all meetings of the Assembly, the committees and working groups established by the Assembly. The Director General, or a staff member designated by him, shall be *ex officio* Secretary of such a body.

(3) *[Conferences]* (a) The International Bureau shall, in accordance with the directions of the Assembly, make the preparations for any revision conferences.

(b) The International Bureau may consult with intergovernmental and international and national non-governmental organizations concerning the said preparations.

(c) The Director General and persons designated by him shall take part, without the right to vote, in the discussions at revision conferences.

(4) *[Other Tasks]* The International Bureau shall carry out any other tasks assigned to it in relation to this Act.

Article 24
Finances

(1) *[Budget]* The income and expenses of the Special Union shall be reflected in the budget of the Organization in a fair and transparent manner.

(2) *[Sources of Financing of the Budget]* The income of the Special Union shall be derived from the following sources:

(i) fees collected under Article 7(1) and (2);

(ii) proceeds from the sale of, or royalties on, the publications of the International Bureau;

(iii) gifts, bequests, and subventions;

(iv) rent, investment revenue, and other, including miscellaneous, income;

(v) special contributions of the Contracting Parties or any alternative source derived from the Contracting Parties or beneficiaries, or both, if and to the extent to which receipts from the sources indicated in items (i) to (iv) do not suffice to cover the expenses, as decided by the Assembly.

(3) *[Fixing of Fees; Level of the Budget]* (a) The amounts of the fees referred to in paragraph (2) shall be fixed by the Assembly on the proposal of the Director General and shall be so fixed that, together with the income derived from other sources under paragraph (2), the revenue of the Special Union should, under normal circumstances, be sufficient to cover the expenses of the International Bureau for maintaining the international registration service.

(b) If the Program and Budget of the Organization is not adopted before the beginning of a new financial period, the authorization to the Director General to incur obligations and make payments shall be at the same level as it was in the previous financial period.

(4) *[Establishing the Special Contributions Referred to in Paragraph (2)(v)]* For the purpose of establishing its contribution, each Contracting Party shall belong to the same class as it belongs to in the context of the Paris Convention or, if it is not a Contracting Party of the Paris Convention, as it would belong to if it were a Contracting Party of the Paris Convention. Intergovernmental organizations shall be considered to belong to contribution class I (one), unless otherwise unanimously decided by the Assembly. The contribution shall be partially weighted according to the number of registrations originating in the Contracting Party, as decided by the Assembly.

(5) *[Working Capital Fund]* The Special Union shall have a working capital fund, which shall be constituted by payments made by way of advance by each member of the Special Union when the Special Union so decides. If the fund becomes insufficient, the Assembly may decide to increase it. The proportion and the terms of payment shall be fixed by the Assembly on the proposal of the Director General. Should the Special Union record a surplus of income over expenditure in any financial period, the Working Capital Fund advances may be repaid to each member proportionate to their initial payments upon proposal by the Director General and decision by the Assembly.

(6) *[Advances by Host State]* (a) In the headquarters agreement concluded with the State on the territory of which the Organization has its headquarters, it shall be provided that, whenever the working capital fund is insufficient, such State shall grant advances. The amount of those advances and the conditions on which they are granted shall be the subject of separate agreements, in each case, between such State and the Organization.

(b) The State referred to in subparagraph (a) and the Organization shall each have the right to denounce the obligation to grant advances, by written notification. Denunciation shall take effect three years after the end of the year in which it has been notified.

(7) *[Auditing of Accounts]* The auditing of the accounts shall be effected by one or more of the States members of the Special Union or by external auditors, as provided in the Financial Regulations of the Organization. They shall be designated, with their agreement, by the Assembly.

Article 25
Regulations

(1) *[Subject-Matter]* The details for carrying out this Act shall be established in the Regulations.

(2) *[Amendment of Certain Provisions of the Regulations]* (a) The Assembly may decide that certain provisions of the Regulations may be amended only by unanimity or only by a three-fourths majority.

(b) In order for the requirement of unanimity or a three-fourths majority no longer to apply in the future to the amendment of a provision of the Regulations, unanimity shall be required.

(c) In order for the requirement of unanimity or a three-fourths majority to apply in the future to the amendment of a provision of the Regulations, a three-fourths majority shall be required.

(3) *[Conflict Between This Act and the Regulations]* In the case of conflict between the provisions of this Act and those of the Regulations, the former shall prevail.

CHAPTER VI
REVISION AND AMENDMENT

Article 26
Revision

(1) *[Revision Conferences]* This Act may be revised by Diplomatic Conferences of the Contracting Parties. The convocation of any Diplomatic Conference shall be decided by the Assembly.

(2) *[Revision or Amendment of Certain Articles]* Articles 22 to 24 and 27 may be amended either by a revision conference or by the Assembly according to the provisions of Article 27.

Article 27
Amendment of Certain Articles by the Assembly

(1) *[Proposals for Amendment]* (a) Proposals for the amendment of Articles 22 to 24, and the present Article, may be initiated by any Contracting Party or by the Director General.

(b) Such proposals shall be communicated by the Director General to the Contracting Parties at least six months in advance of their consideration by the Assembly.

(2) *[Majorities]* Adoption of any amendment to the Articles referred to in paragraph (1) shall require a three-fourths majority, except that adoption of any amendment to Article 22, and to the present paragraph, shall require a four-fifths majority.

(3) *[Entry into Force]* (a) Except where subparagraph (b) applies, any amendment to the Articles referred to in paragraph (1) shall enter into force one month after written notifications of acceptance, effected in accordance with their respective constitutional processes, have been received by the Director General from three-fourths of those Contracting Parties which, at the time the amendment was adopted, were members of the Assembly and had the right to vote on that amendment.

(b) Any amendment to Article 22(3) or (4) or to this subparagraph shall not enter into force if, within six months of its adoption by the Assembly, any Contracting Party notifies the Director General that it does not accept such amendment.

(c) Any amendment which enters into force in accordance with the provisions of this paragraph shall bind all the States and intergovernmental organizations which are Contracting Parties at the time the amendment enters into force, or which become Contracting Parties at a subsequent date.

CHAPTER VII
FINAL PROVISIONS

Article 28
Becoming Party to This Act

(1) *[Eligibility]* Subject to Article 29 and paragraphs (2) and (3) of the present Article,

(i) any State which is party to the Paris Convention may sign and become party to this Act;

(ii) any other State member of the Organization may sign and become party to this Act if it declares that its legislation complies with the provisions of the Paris Convention concerning appellations of origin, geographical indications and trademarks;

(iii) any intergovernmental organization may sign and become party to this Act, provided that at least one member State of that intergovernmental organization is party to the Paris Convention and provided that the intergovernmental organization declares that it has been duly authorized, in accordance with its internal procedures, to become party to this Act and that, under the constituting treaty of the intergovernmental

organization, legislation applies under which regional titles of protection can be obtained in respect of geographical indications.

(2) *[Ratification or Accession]* Any State or intergovernmental organization referred to in paragraph (1) may deposit

(i) an instrument of ratification, if it has signed this Act; or

(ii) an instrument of accession, if it has not signed this Act.

(3) *[Effective Date of Deposit]* (a) Subject to subparagraph (b), the effective date of the deposit of an instrument of ratification or accession shall be the date on which that instrument is deposited.

(b) The effective date of the deposit of the instrument of ratification or accession of any State that is a member State of an intergovernmental organization and in respect of which the protection of appellations of origin or geographical indications can only be obtained on the basis of legislation applying between the member States of the intergovernmental organization shall be the date on which the instrument of ratification or accession of that intergovernmental organization is deposited, if that date is later than the date on which the instrument of the said State has been deposited. However, this subparagraph does not apply with regard to States that are party to the Lisbon Agreement or the 1967 Act and shall be without prejudice to the application of Article 31 with regard to such States.

Article 29
Effective Date of Ratifications and Accessions

(1) *[Instruments to Be Taken into Consideration]* For the purposes of this Article, only instruments of ratification or accession that are deposited by States or intergovernmental organizations referred to in Article 28(1) and that have an effective date according to Article 28(3) shall be taken into consideration.

(2) *[Entry into Force of This Act]* This Act shall enter into force three months after five eligible parties referred to in Article 28 have deposited their instruments of ratification or accession.

(3) *[Entry into Force of Ratifications and Accessions]* (a) Any State or intergovernmental organization that has deposited its instrument of ratification or accession three months or more before the date of entry into force of this Act shall become bound by this Act on the date of the entry into force of this Act.

(b) Any other State or intergovernmental organization shall become bound by this Act three months after the date on which it has deposited its instrument of ratification or accession or at any later date indicated in that instrument.

(4) *[International Registrations Effected Prior to Accession]* In the territory of the acceding State and, where the Contracting Party is an intergovernmental organization, the territory in which the constituting treaty of that intergovernmental organization applies, the provisions of this Act shall apply in respect of appellations of origin and geographical indications already registered under this Act at the time the accession becomes effective, subject to Article 7(4) as well as the provisions of Chapter IV, which shall apply *mutatis mutandis*. The acceding State or intergovernmental organization may also specify, in a declaration attached to its instrument of ratification or accession, an extension of the time limit referred to in Article 15(1), and the periods referred to in Article 17, in accordance with the procedures specified in the Regulations in that respect.

Article 30
Prohibition of Reservations

No reservations to this Act are permitted.

Article 31
Application of the Lisbon Agreement and the 1967 Act

(1) *[Relations Between States Party to Both This Act and the Lisbon Agreement or the 1967 Act]* This Act alone shall be applicable as regards the mutual relations of States party to both this Act and the Lisbon Agreement or the 1967 Act. However, with regard to international registrations of appellations of origin effective under the Lisbon Agreement or the 1967 Act, the States shall accord no lower protection than is required by the Lisbon Agreement or the 1967 Act.

(2) *[Relations Between States Party to Both This Act and the Lisbon Agreement or the 1967 Act and States Party to the Lisbon Agreement or the 1967 Act Without Being Party to This Act]* Any State party to both this Act and the Lisbon Agreement or the 1967 Act shall continue to apply the Lisbon Agreement or the 1967 Act, as the case may be, in its relations with States party to the Lisbon Agreement or the 1967 Act that are not party to this Act.

Article 32
Denunciation

(1) *[Notification]* Any Contracting Party may denounce this Act by notification addressed to the Director General.

(2) *[Effective Date]* Denunciation shall take effect one year after the date on which the Director General has received the notification or at any later date indicated in the notification. It shall not affect the application of this Act to any application pending and any international registration in force in respect of the denouncing Contracting Party at the time of the coming into effect of the denunciation.

Article 33
Languages of this Act; Signature

(1) *[Original Texts; Official Texts]* (a) This Act shall be signed in a single original in the English, Arabic, Chinese, French, Russian and Spanish languages, all texts being equally authentic.

(b) Official texts shall be established by the Director General, after consultation with the interested Governments, in such other languages as the Assembly may designate.

(2) *[Time Limit for Signature]* This Act shall remain open for signature at the headquarters of the Organization for one year after its adoption.

Article 34
Depositary

The Director General shall be the depositary of this Act.

Regulations Under the Geneva Act of the Lisbon Agreement on Appellations of Origin and Geographical Indications

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CHAPTER I
INTRODUCTORY AND GENERAL PROVISIONS

Rule 1
Abbreviated Expressions

For the purposes of these Regulations, unless expressly stated otherwise:

(i) abbreviated expressions defined in Article 1 shall have the same meaning in these Regulations;

(ii) "Rule" refers to a rule of these Regulations;

(iii) "Administrative Instructions" means the Administrative Instructions referred to in Rule 24;

(iv) "Official Form" means a form drawn up by the International Bureau.

Rule 2
Calculation of Time Limits

(1) *[Periods Expressed in Years]* A period expressed in years shall expire in the subsequent year on the same day and month as the day and month of the event from which the period starts to run, except that, where the event occurred on February 29, the period shall expire on February 28 of the subsequent year.

(2) *[Periods Expressed in Months]* A period expressed in months shall expire in the relevant subsequent month on the same day as the day of the event from which the period starts to run, except that, where the relevant subsequent month has no day with the same number, the period shall expire on the last day of that month.

(3) *[Expiry on a Day Which Is Not a Working Day for the International Bureau or a Competent Authority]* If the period of a time limit applying to the International Bureau or a Competent Authority expires on a day which is not a working day for the International Bureau or a Competent Authority, the period shall, notwithstanding paragraphs (1) and (2), expire for the International Bureau or the Competent Authority, as the case may be, on the first subsequent working day.

Rule 3
Working Languages

(1) *[Application]* The application shall be in English, French or Spanish.

(2) *[Communications Subsequent to the International Application]* Any communication concerning an application or an international registration shall be in English, French or Spanish, at the choice of the Competent Authority concerned or, in the case of Article 5(3), at the choice of the beneficiaries or the natural person or legal entity referred to in Article 5(2)(ii). Any translation needed for the purposes of these procedures shall be made by the International Bureau.

(3) *[Entries in the International Register and Publication]* Entries in the International Register and publication of such entries by the International Bureau shall be in English, French and Spanish. The translations needed for those purposes shall be made by the International Bureau. However, the International Bureau shall not translate the appellation of origin or the geographical indication.

(4) *[Transliteration of the Appellation of Origin or Geographical Indication]* Where the application contains a transliteration of the appellation of origin or the geographical indication in accordance with Rule 5(2)(b), the International Bureau shall not check whether the transliteration is correct.

Rule 4
Competent Authority

(1) *[Notification to the International Bureau]* Upon accession, each Contracting Party shall notify the International Bureau of the name and contact details of its Competent Authority, i.e. the authority it has designated to present applications and other notifications to, and receive notifications from, the International Bureau. In addition, such Competent Authority shall make available information on the applicable procedures in the Contracting Party for the enforcement of rights in appellations of origin and geographical indications.

(2) *[One Authority or Different Authorities]* The notification referred to in paragraph (1) shall, preferably, indicate a single Competent Authority. When a Contracting Party notifies different Competent Authorities, this

notification shall clearly indicate their respective competence in respect of the presentation of applications to, and the receipt of notifications from, the International Bureau.

(3) *[Modifications]* Contracting Parties shall notify the International Bureau of any change in the particulars referred to in paragraph (1). However, the International Bureau may *ex officio* take cognizance of a change in the absence of a notification where it has clear indications that such a change has taken place.

CHAPTER II
APPLICATION AND INTERNATIONAL REGISTRATION

Rule 5
Requirements Concerning the Application

(1) *[Filing]* The application shall be filed with the International Bureau on the Official Form provided to that end and shall be signed by the Competent Authority presenting it or, in the case of Article 5(3), the beneficiaries or the natural person or legal entity referred to in Article 5(2)(ii).

(2) *[Application – Mandatory Contents]* (a) The application shall indicate:

(i) the Contracting Party of Origin;

(ii) the Competent Authority presenting the application or, in the case of Article 5(3), details identifying the beneficiaries or the natural person or legal entity referred to in Article 5(2)(ii);

(iii) the beneficiaries, designated collectively or, where collective designation is not possible, by name, or the natural person or legal entity having legal standing under the law of the Contracting Party of Origin to assert the rights of the beneficiaries or other rights in the appellation of origin or the geographical indication;

(iv) the appellation of origin or the geographical indication for which registration is sought, in the official language of the Contracting Party of Origin or, where the Contracting Party of Origin has more than one official language, in the official language or languages in which the appellation of

origin or the geographical indication is contained in the registration, act or decision, by virtue of which protection is granted in the Contracting Party of Origin[1];

(v) the good or goods to which the appellation of origin, or the geographical indication, applies, as precisely as possible;

(vi) the geographical area of origin or the geographical area of production of the good or goods;

(vii) the identifying details, including the date of the registration, the legislative or administrative act, or the judicial or administrative decision, by virtue of which protection is granted to the appellation of origin, or to the geographical indication, in the Contracting Party of Origin.

(b) If they are not in Latin characters, the application shall include a transliteration of the names of the beneficiaries or the natural person or legal entity referred to in Article 5(2)(ii), of the geographical area of origin, and of the appellation of origin or the geographical indication for which registration is sought. The transliteration shall use the phonetics of the language of the application[1].

(c) The application shall be accompanied by the registration fee and any other fees, as specified in Rule 8.

(3) *[Application – Particulars Concerning the Quality, Reputation or Characteristic(s)]* (a) To the extent that a Contracting Party requires that, for the protection of a registered appellation of origin or geographical indication in its territory, the application further indicate particulars concerning, in the case of an appellation of origin, the quality or characteristics of the good and its connection with the geographical environment of the geographical area of production, and, in the case of a geographical indication, the quality, reputation or other characteristic of the good and its connection with the geographical area of origin, it shall notify that requirement to the Director General.

(b) In order to meet such a requirement, particulars as referred to in subparagraph (a) shall be provided in a working language, but they shall not be translated by the International Bureau.

(c) An application that is not in accordance with a requirement as notified by a Contracting Party under subparagraph (a) shall, subject to Rule 6, have the effect that protection is renounced in respect of that Contracting Party.

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[1] The application of Rule 5(2)(a)(iv) and Rule 5(2)(b) is subject to the provisions of Rule 3(3) and (4).

(4) *[Application – Signature and/or Intention to Use]* (a) To the extent that a Contracting Party requires that for protection of a registered appellation of origin or geographical indication the application be signed by a person having legal standing to assert the rights conferred by such protection, it shall notify that requirement to the Director General.

(b) To the extent that a Contracting Party requires that for protection of a registered appellation of origin or geographical indication the application be accompanied by a declaration of intention to use the registered appellation of origin or geographical indication in its territory or a declaration of intention to exercise control over the use by others of the registered appellation of origin or geographical indication in its territory, it shall notify that requirement to the Director General.

(c) An application that is not signed in accordance with subparagraph (a), or that is not accompanied by a declaration indicated in subparagraph (b), shall, subject to Rule 6, have the effect that protection is renounced in respect of the Contracting Party requiring such signature or declaration, as notified under subparagraphs (a) and (b).

(5) *[Application – Protection Not Claimed for Certain Elements of the Appellation of Origin or the Geographical Indication]* The application shall indicate whether or not, to the best knowledge of the applicant, the registration, the legislative or administrative act, or the judicial or administrative decision, by virtue of which protection is granted to the appellation of origin, or to the geographical indication, in the Contracting Party of Origin, specifies that protection is not granted for certain elements of the appellation of origin or the geographical indication. Any such elements shall be indicated in the application in a working language.

(6) *[Application – Optional Contents]* The application may indicate or contain:

(i) the addresses of the beneficiaries;

(ii) a declaration that protection is renounced in one or more Contracting Parties;

(iii) a copy in the original language of the registration, the legislative or administrative act, or the judicial or administrative decision, by virtue of which protection is granted to the appellation of origin or the geographical indication in the Contracting Party of Origin;

(iv) a statement to the effect that protection is not claimed for certain elements, other than those refered to in paragraph (5), of the appellation of origin or the geographical indication.

Rule 6
Irregular Applications

(1) *[Examination of the Application and Correction of Irregularities]* (a) Subject to paragraph (2), if the International Bureau finds that an application does not satisfy the conditions set out in Rule 3(1) or Rule 5, it shall defer registration and invite the Competent Authority or, in the case of Article 5(3), the beneficiaries or the natural person or legal entity referred to in Article 5(2)(ii), to remedy the irregularity found within a period of three months from the date on which the invitation was sent.

(b) If the irregularity found is not corrected within two months of the date of the invitation referred to in subparagraph (a), the International Bureau shall send a reminder of its invitation. The sending of such a reminder shall have no effect on the three-month period referred to in subparagraph (a).

(c) If the correction of the irregularity is not received by the International Bureau within the three-month period referred to in subparagraph (a), the application shall, subject to subparagraph (d), be rejected by the International Bureau, which shall inform the Competent Authority or, in the case of Article 5(3), the beneficiaries or the natural person or legal entity referred to in Article 5(2)(ii) as well as the Competent Authority, accordingly.

(d) In the case of an irregularity with respect to a requirement based on a notification made under Rule 5(3) or (4), or on a declaration made under Article 7(4), if the correction of the irregularity is not received by the International Bureau within the three-month period referred to in subparagraph (a), the protection resulting from the international registration shall be considered to be renounced in the Contracting Party having made the notification or the declaration.

(e) Where, in accordance with subparagraph (c), the application is rejected, the International Bureau shall refund the fees paid in respect of the application, after deduction of an amount corresponding to half the registration fee referred to in Rule 8.

(2) *[Application Not Considered as Such]* If the application is not filed by the Competent Authority of the Contracting Party of Origin or, in the case of Article 5(3), the beneficiaries or the natural person or legal entity referred to in Article 5(2)(ii), it shall not be considered as such by the International Bureau and shall be returned to the sender.

Rule 7
Entry in the International Register

(1) *[Registration]* (a) Where the International Bureau finds that the application satisfies the conditions set out in Rules 3(1) and 5, it shall enter the appellation of origin or the geographical indication in the International Register.

(b) Where the application is also governed by the Lisbon Agreement or the 1967 Act, the International Bureau shall enter the appellation of origin in the International Register if it finds that the application satisfies the conditions set out in Rules 3(1) and 5 of the Regulations that apply in respect of the Lisbon Agreement or the 1967 Act.

(c) The International Bureau shall indicate per Contracting Party whether the international registration is governed by this Act or by the Lisbon Agreement or the 1967 Act.

(2) *[Contents of the Registration]* The international registration shall contain or indicate:

(i) all the particulars given in the application;

(ii) the language in which the International Bureau received the application;

(iii) the number of the international registration;

(iv) the date of the international registration.

(3) *[Certificate and Notification]* The International Bureau shall:

(i) send a certificate of international registration to the Competent Authority of the Contracting Party of Origin or, in the case of Article 5(3), to the beneficiaries or the natural person or legal entity referred to in Article 5(2)(ii) that requested the registration; and

(ii) notify the international registration to the Competent Authority of each Contracting Party.

(4) *[Implementation of Article 31(1)]* (a) In case of the ratification of, or accession to, this Act by a State that is party to the Lisbon Agreement or the 1967 Act, Rule 5(2) to (4) shall apply *mutatis mutandis* with regard to international registrations or appellations of origin effective under the Lisbon Agreement or the 1967 Act in respect of that State. The International Bureau shall verify with the Competent Authority concerned any modifications to be made, in view of the requirements of Rules 3(1) and 5(2) to (4), for the purpose of their registration under this Act and notify international registrations thus effected to all other Contracting Parties. Modifications shall be subject to payment of the fee specified in Rule 8(1)(ii).

(b) Any declaration of refusal or notification of invalidation issued by a Contracting Party that is also party to the Lisbon Agreement or the 1967 Act shall remain effective under this Act, unless the Contracting Party notifies a withdrawal of refusal under Article 16 or a grant of protection under Article 18.

(c) Where subparagraph (b) does not apply, any Contracting Party that is also party to the Lisbon Agreement or the 1967 Act shall, upon receipt of a notification under subparagraph (a), continue to protect the appellation of origin concerned thenceforth also under this Act, unless the Contracting Party indicates otherwise. Any period granted under Article 5(6) of the Lisbon Agreement or the 1967 Act and still effective at the time the notification under subparagraph (a) is received shall, for its remainder, be subject to the provisions of Article 17.

Rule 8
Fees

(1) *[Amount of Fees]* The International Bureau shall collect the following fees[2], payable in Swiss francs:

(i) fee for international registration …

(ii) fee for each modification of an international registration …

(iii) fee for providing an extract from the International Register …

(iv) fee for providing an attestation or any other written information concerning the contents of the International Register …

(v) individual fees as referred to in paragraph (2) …

(2) *[Establishment of the Amount of Individual Fees]* (a) Where a Contracting Party makes a declaration as referred to in Article 7(4) that it wants to receive an individual fee, as referred to in that provision, the amount of such fee shall be indicated in the currency used by the Competent Authority.

(b) Where the fee is indicated in the declaration referred to in subparagraph (a) in a currency other than Swiss currency, the Director General shall, after consultation with the Competent Authority of the Contracting Party, establish the amount of the fee in Swiss currency on the basis of the official exchange rate of the United Nations.

[2] The amounts of the fees are to be decided by the Assembly.

(c) Where, for more than three consecutive months, the official exchange rate of the United Nations between the Swiss currency and the currency in which the amount of an individual fee has been indicated by a Contracting Party is higher or lower by at least 5 per cent than the last exchange rate applied to establish the amount of the fee in Swiss currency, the Competent Authority of that Contracting Party may ask the Director General to establish a new amount of the fee in Swiss currency according to the official exchange rate of the United Nations prevailing on the day preceding the day on which the request is made. The Director General shall proceed accordingly. The new amount shall be applicable as from a date which shall be fixed by the Director General, provided that such date is between one and two months after the date of the publication of the said amount on the website of the Organization.

(d) Where, for more than three consecutive months, the official exchange rate of the United Nations between the Swiss currency and the currency in which the amount of an individual fee has been indicated by a Contracting Party is lower by at least 10 per cent than the last exchange rate applied to establish the amount of the fee in Swiss currency, the Director General shall establish a new amount of the fee in Swiss currency according to the current official exchange rate of the United Nations. The new amount shall be applicable as from a date which shall be fixed by the Director General, provided that such date is between one and two months after the date of the publication of the said amount on the web site of the Organization.

(3) *[Crediting of Individual Fees to the Accounts of the Contracting Parties Concerned]* Any individual fee paid to the International Bureau in respect of a Contracting Party shall be credited to the account of that Contracting Party with the International Bureau within the month following the month in the course of which the recording of the international registration for which that fee has been paid was effected.

(4) *[Obligation to Use Swiss Currency]* All payments made under these Regulations to the International Bureau shall be in Swiss currency irrespective of the fact that, where the fees are paid through the Competent Authority, such Competent Authority may have collected those fees in another currency.

(5) *[Payment]* (a) Subject to subparagraph (b), the fees shall be paid directly to the International Bureau.

(b) The fees payable in connection with an application may be paid through the Competent Authority if the Competent Authority accepts to collect and forward such fees and the beneficiaries so wish. Any Competent Authority which accepts to collect and forward such fees shall notify that fact to the Director General.

(6) *[Modes of Payment]* Fees shall be paid to the International Bureau in accordance with the Administrative Instructions.

(7) *[Indications Accompanying the Payment]* At the time of the payment of any fee to the International Bureau, an indication must be given of the appellation of origin or the geographical indication concerned and the purpose of the payment.

(8) *[Date of Payment]* (a) Subject to subparagraph (b), any fee shall be considered to have been paid to the International Bureau on the day on which the International Bureau receives the required amount.

(b) Where the required amount is available in an account opened with the International Bureau and that Bureau has received instructions from the holder of the account to debit it, the fee shall be considered to have been paid to the International Bureau on the day on which the International Bureau receives an application or a request for the recording of a modification.

(9) *[Change in the Amount of the Fees]* Where the amount of any fee is changed, the amount valid on the date on which the fee was received by the International Bureau shall be applicable.

CHAPTER III
REFUSAL AND OTHER ACTIONS IN RESPECT OF INTERNATIONAL REGISTRATION

Rule 9
Refusal

(1) *[Notification to the International Bureau]* (a) A refusal shall be notified to the International Bureau by the Competent Authority of the concerned Contracting Party and shall be signed by that Competent Authority.

(b) The refusal shall be notified within a period of one year from the receipt of the notification of international registration under Article 6(4). In the case of Article 29(4), this time limit may be extended by another year.

(2) *[Contents of the Notification of Refusal]* A notification of refusal shall indicate or contain:

(i) the Competent Authority notifying the refusal;

(ii) the number of the relevant international registration, preferably accompanied by further information enabling the identity of the international registration to be confirmed, such as the denomination constituting the appellation of origin or the indication constituting the geographical indication;

(iii) the grounds on which the refusal is based;

(iv) where the refusal is based on the existence of a prior right, as referred to in Article 13, the essential particulars of that prior right and, in particular, if it is constituted by a national, regional or international trademark application or registration, the date and number of such application or registration, the priority date (where appropriate), the name and address of the holder, a reproduction of the trademark, together with the list of relevant goods and services given in the trademark application or registration, it being understood that the list may be submitted in the language of the said application or registration;

(v) where the refusal concerns only certain elements of the appellation of origin, or the geographical indication, an indication of the elements that it concerns;

(vi) the judicial or administrative remedies available to contest the refusal, together with the applicable time limits.

(3) *[Entry in the International Register and Notifications by the International Bureau]* Subject to Rule 10(1), the International Bureau shall enter in the International Register any refusal, together with the date on which the notification of refusal was sent to the International Bureau, and shall communicate a copy of the notification of refusal to the Competent Authority of the Contracting Party of Origin or, in the case of Article 5(3), the beneficiaries or the natural person or legal entity referred to in Article 5(2)(ii) as well as the Competent Authority of the Contracting Party of Origin.

Rule 10
Irregular Notification of Refusal

(1) *[Declaration of Refusal Not Considered as Such]* (a) A notification of refusal shall not be considered as such by the International Bureau:

(i) if it does not indicate the number of the international registration concerned, unless other information given in the declaration enables the registration to be identified without ambiguity;

(ii) if it does not indicate any ground for refusal;

(iii) if it is sent to the International Bureau after the expiry of the relevant time limit referred to in Rule 9(1);

(iv) if it is not notified to the International Bureau by the Competent Authority.

(b) Where subparagraph (a) applies, the International Bureau shall inform the Competent Authority that submitted the notification of refusal that the refusal is not considered as such by the International Bureau and has not been entered in the International Register, shall state the reasons therefore and shall, unless it is unable to identify the international registration concerned, communicate a copy of the notification of refusal to the Competent Authority of the Contracting Party of Origin or, in the case of Article 5(3), the beneficiaries or the natural person or legal entity referred to in Article 5(2)(ii) as well as the Competent Authority of the Contracting Party of Origin.

(2) *[Irregular Declaration]* If the notification of refusal contains an irregularity other than those referred to in paragraph (1), the International Bureau shall nevertheless enter the refusal in the International Register and shall communicate a copy of the notification of refusal to the Competent Authority of the Contracting Party of Origin or, in the case of Article 5(3), the beneficiaries or the natural person or legal entity referred to in Article 5(2)(ii) as well as the Competent Authority of the Contracting party of Origin. At the request of that Competent Authority or, in the case of Article 5(3), the beneficiaries or the natural person or legal entity referred to in Article 5(2)(ii), the International Bureau shall invite the Competent Authority that submitted the notification of refusal to regularize the notification without delay.

Rule 11
Withdrawal of Refusal

(1) *[Notification to the International Bureau]* A refusal may be withdrawn, in part or in whole, at any time by the Competent Authority that notified it. The withdrawal of a refusal shall be notified to the International Bureau by the relevant Competent Authority and shall be signed by such authority.

(2) *[Contents of the Notification]* The notification of withdrawal of a refusal shall indicate:

(i) the number of the international registration concerned, preferably accompanied by other information enabling the identity of the international registration to be confirmed, such as the denomination constituting the appellation of origin or the indication constituting the geographical indication;

(ii) the reason for the withdrawal and, in case of a partial withdrawal, the particulars referred to in Rule 9(2)(v);

(iii) the date on which the refusal was withdrawn.

(3) *[Entry in the International Register and Notifications by the International Bureau]* The International Bureau shall enter in the International Register any withdrawal referred to in paragraph (1) and shall communicate a copy of the notification of withdrawal to the Competent Authority of the Contracting Party of Origin or, in the case of Article 5(3), the beneficiaries or the natural person or legal entity referred to in Article 5(2)(ii) as well as the Competent Authority of the Contracting Party of Origin.

Rule 12
Notification of Grant of Protection

(1) *[Optional Statement of Grant of Protection]* (a) A Competent Authority of a Contracting Party which does not refuse the effects of an international registration may, within the time limit referred to in Rule 9(1), send to the International Bureau a statement confirming that protection is granted to the appellation of origin, or the geographical indication, that is the subject of an international registration.

(b) The statement shall indicate:

(i) the Competent Authority of the Contracting Party making the statement;

(ii) the number of the international registration concerned, preferably accompanied by other information enabling the identity of the international registration to be confirmed, such as the denomination constituting the appellation of origin, or the indication constituting the geographical indication; and

(iii) the date of the statement.

(2) *[Optional Statement of Grant of Protection Following a Refusal]* (a) Where a Competent Authority that has previously submitted a notification of refusal wishes to withdraw that refusal, it may, instead of notifying the withdrawal of refusal in accordance with Rule 11(1), send to the International Bureau a statement to the effect that protection is granted to the relevant appellation of origin or geographical indication.

(b) The statement shall indicate:

(i) the Competent Authority of the Contracting Party making the statement;

(ii) the number of the international registration concerned, preferably accompanied by other information enabling the identity of the international registration to be confirmed, such as the denomination constituting the appellation of origin, or the indication constituting the geographical indication;

(iii) the reason for the withdrawal and, in case of a grant of protection that amounts to a partial withdrawal of refusal, the particulars referred to in Rule 9(2)(v); and

(iv) the date on which protection was granted.

(3) *[Entry in the International Register and Notifications by the International Bureau]* The International Bureau shall enter in the International Register any statement referred to in paragraphs (1) or (2) and communicate a copy of such statement to the Competent Authority of the Contracting Party of Origin or, in the case of Article 5(3), the beneficiaries or the natural person or legal entity referred to in Article 5(2)(ii) as well as the Competent Authority of the Contracting Party of Origin.

Rule 13
Notification of Invalidation of the Effects of an International Registration in a Contracting Party

(1) *[Notification of Invalidation to the International Bureau]* Where the effects of an international registration are invalidated in a Contracting Party, in whole or in part, and the invalidation is no longer subject to appeal, the Competent Authority of the concerned Contracting Party shall transmit to the International Bureau a notification of invalidation. The notification shall indicate or contain:

(i) the number of the international registration concerned, preferably accompanied by other information enabling the identity of the international registration to be confirmed, such as the denomination constituting the appellation of origin, or the indication constituting the geographical indication;

(ii) the authority that pronounced the invalidation;

(iii) the date on which the invalidation was pronounced;

(iv) where the invalidation is partial, the particulars referred to in Rule 9(2)(v);

(v) the grounds on the basis of which the invalidation was pronounced;

(vi) a copy of the decision that invalidated the effects of the international registration.

(2) *[Entry in the International Register and Notifications by the International Bureau]* The International Bureau shall enter the invalidation in the International Register together with the particulars referred to in items (i) to (v) of paragraph (1) and shall communicate a copy of the notification to the Competent Authority of the Contracting Party of Origin or, in the case of Article 5(3), the beneficiaries or the natural person or legal entity referred to in Article 5(2)(ii) as well as the Competent Authority of the Contracting Party of Origin.

Rule 14
Notification of Transitional Period Granted to Third Parties

(1) *[Notification to the International Bureau]* Where a third party has been granted a defined period of time in which to terminate the use of a registered appellation of origin, or a registered geographical indication, in a Contracting Party, in accordance with Article 17(1), the Competent Authority of that Contracting Party shall notify the International Bureau accordingly. The notification shall indicate:

(i) the number of the international registration concerned, preferably accompanied by other information enabling the identity of the international registration to be confirmed, such as the denomination constituting the appellation of origin, or the indication constituting the geographical indication;

(ii) the identity of the third party concerned;

(iii) the period granted to the third party, preferably accompanied by information about the scope of the use during the transitional period;

(iv) the date from which the defined period begins, it being understood that the date may not be later than one year and three months from the receipt of the notification of international registration under Article 6(4) or, in the case of Article 29(4), no later than two years and three months from such receipt.

(2) *[Desirable Duration]* The duration of the period granted to a third party shall not be longer than 15 years, it being understood that the period may depend on the specific situation of each case and that a period longer than ten years would be exceptional.

(3) *[Entry in the International Register and Notifications by the International Bureau]* Subject to the notification referred to in paragraph (1) being sent by the Competent Authority to the International Bureau before the date referred to in paragraph (1)(iv), the International Bureau shall enter such notification in the International Register together with the particulars shown therein and shall communicate a copy of the notification to the Competent Authority of the Contracting Party of Origin or, in the case of Article 5(3), the beneficiaries or the natural person or legal entity referred to in Article 5(2)(ii) as well as the Competent Authority of the Contracting Party of Origin.

Rule 15
Modifications

(1) *[Permissible Modifications]* The following modifications may be recorded in the International Register:

(i) the addition or deletion of a beneficiary or some beneficiaries;

(ii) a modification of the names or addresses of the beneficiaries;

(iii) a modification of the limits of the geographical area of origin of the good or goods to which the appellation of origin, or the geographical indication, applies;

(iv) a modification relating to the legislative or administrative act, the judicial or administrative decision, or the registration referred to in Rule 5(2)(a)(vii);

(v) a modification relating to the Contracting Party of Origin that does not affect the geographical area of origin of the good or goods to which the appellation of origin, or the geographical indication, applies;

(vi) a modification under Rule 16.

(2) *[Procedure]* (a) A request for entry of a modification referred to in paragraph (1) shall be presented to the International Bureau by the Competent Authority of the Contracting Party of Origin or, in the case of Article 5(3), the beneficiaries or the natural person or legal entity referred to in Article 5(2)(ii), and shall be accompanied by the fee specified in Rule 8.

(b) A request for entry of a modification referred to in paragraph (1) shall, where it concerns a newly established trans-border geographical area of origin, be presented to the International Bureau by the commonly designated Competent Authority.

(3) *[Entry in the International Register and Notification to the Competent Authorities]* The International Bureau shall enter in the International Register any modification requested in accordance with paragraphs (1) and (2) together with the date of receipt of the request by the International Bureau, confirm the entry to the Competent Authority that requested the modification, and communicate such modification to the Competent Authorities of the other Contracting Parties.

(4) *[Optional Alternative]* In the case of Article 5(3), paragraphs (1) to (3) shall apply *mutatis mutandis*, it being understood that a request from the beneficiaries or from the natural person or legal entity referred to in Article 5(2)(ii) must indicate that the change is requested because of a corresponding change to the registration, the legislative or administrative act, or the judicial or administrative decision, on the basis of which the appellation of origin, or the geographical indication, had been granted protection in the Contracting Party of Origin; and that the entry of the modification in the International Register shall be confirmed to the concerned beneficiaries or natural person or legal entity by the International Bureau, which shall also inform the Competent Authority of the Contracting Party of Origin.

Rule 16
Renunciation of Protection

(1) *[Notification to the International Bureau]* The Competent Authority of the Contracting Party of Origin, or, in the case of Article 5(3), the beneficiaries or the natural person or legal entity referred to in Article 5(2)(ii) or the Competent Authority of the Contracting Party of Origin, may at any time notify the International Bureau that protection of the appellation of origin, or the geographical indication, is renounced, in whole or in part, in respect of one or some of the Contracting Parties. The notification of renunciation of protection shall state the number of the international registration concerned, preferably accompanied by other information enabling the identity of the international registration to be confirmed, such as the denomination constituting the appellation of origin, or the indication constituting the geographical indication.

(2) *[Withdrawal of a Renunciation]* Any renunciation, including a renunciation under Rule 6(1)(d), may be withdrawn, in whole or in part, at any time by the Competent Authority or, in the case of Article 5(3), the beneficiaries or the natural person or legal entity referred to in Article 5(2)(ii)

or the Competent Authority of the Contracting Party of Origin, subject to payment of the fee for a modification and, in the case of a renunciation under Rule 6(1)(d), the correction of the irregularity.

(3) *[Entry in the International Register and Notification to the Competent Authorities]* The International Bureau shall enter in the International Register any renunciation of protection referred to in paragraph (1), or any withdrawal of a renunciation referred to in paragraph (2), confirm the entry to the Competent Authority of the Contracting Party of Origin and, in the case of Article 5(3), the beneficiaries or the natural person or legal entity, while also informing the Competent Authority of the Contracting Party of Origin, and shall communicate the entry of such modification in the International Register to the Competent Authorities of each Contracting Party to which the renunciation, or the withdrawal of the renunciation, relates.

(4) *[Application of Rules 9 to 12]* The Competent Authority of a Contracting Party that receives a notification of the withdrawal of a renunciation may notify the International Bureau of the refusal of the effects of the international registration in its territory. The declaration shall be addressed to the International Bureau by such Competent Authority within a period of one year from the date of receipt of the notification by the International Bureau of the withdrawal of the renunciation. Rules 9 to 12 shall apply *mutatis mutandis*.

Rule 17
Cancellation of an International Registration

(1) *[Request for Cancellation]* The request for cancellation shall state the number of the international registration concerned, preferably accompanied by other information enabling the identity of the international registration to be confirmed, such as the denomination constituting the appellation of origin or the indication constituting the geographical indication.

(2) *[Entry in the International Register and Notification to the Competent Authorities]* The International Bureau shall enter in the International Register any cancellation together with the particulars given in the request, confirm the entry to the Competent Authority of the Contracting Party of Origin or, in the case of Article 5(3), the beneficiaries or the natural person or legal entity referred to in Article 5(2)(ii), while also informing the

Competent Authority of the Contracting Party of Origin, and shall communicate the cancellation to the Competent Authorities of the other Contracting Parties.

Rule 18
Corrections Made to the International Register

(1) *[Procedure]* If the International Bureau, acting *ex officio* or at the request of the Competent Authority of the Contracting Party of Origin, finds that the International Register contains an error with respect to an international registration, it shall correct the Register accordingly.

(2) *[Optional Alternative]* In the case of Article 5(3), a request under paragraph (1) can also be submitted by the beneficiaries or by the natural person or legal entity referred to in Article 5(2)(ii). The beneficiaries or the natural person or legal entity shall be notified by the International Bureau of any correction concerning the international registration.

(3) *[Notification of Corrections to the Competent Authorities]* The International Bureau shall notify any correction of the International Register to the Competent Authorities of all Contracting Parties as well as, in the case of Article 5(3), the beneficiaries or the natural person or legal entity referred to in Article 5(2)(ii).

(4) *[Application of Rules 9 to 12]* Where the correction of an error concerns the appellation of origin or the geographical indication, or the good or goods to which the appellation of origin or the geographical indication applies, the Competent Authority of a Contracting Party has the right to declare that it cannot ensure the protection of the appellation of origin or geographical indication after the correction. The declaration shall be addressed to the International Bureau by such Competent Authority within a period of one year from the date of notification by the International Bureau of the correction. Rules 9 to 12 shall apply *mutatis mutandis*.

CHAPTER IV
MISCELLANEOUS PROVISIONS

Rule 19
Publication

The International Bureau shall publish all entries made in the International Register.

Rule 20
Extracts from the International Register and Other Information Provided by the International Bureau

(1) *[Information on the Contents of the International Register]* Extracts from the International Register or any other information on the contents of the Register shall be provided by the International Bureau to any person so requesting, on payment of the fee specified in Rule 8.

(2) *[Communication of Provisions, Decisions or the Registration Under Which an Appellation of Origin or a Geographical Indication Is Protected]* (a) Any person may request from the International Bureau a copy in the original language of the provisions, the decisions or the registration referred to in Rule 5(2)(a)(vii), on payment of the fee specified in Rule 8.

(b) Where such documents have already been communicated to the International Bureau, the latter shall transmit without delay a copy to the person who has made the request.

(c) If such a document has never been communicated to the International Bureau, the latter shall request a copy of it from the Competent Authority of the Contracting Party of Origin and shall transmit the document, on receipt, to the person who has made the request.

Rule 21
Signature

Where the signature of a Competent Authority is required under these Regulations, such signature may be printed or replaced by the affixing of a facsimile or an official seal.

Rule 22
Date of Dispatch of Various Communications

Where the notifications referred to in Rules 9(1), 14(1), 16(4) and 18(4) are communicated through a postal service, the date of dispatch shall be determined by the postmark. If the postmark is illegible or missing, the International Bureau shall treat the communication concerned as if it had been sent 20 days before the date on which it was received. Where such notifications are sent through a mail delivery service, the date of dispatch shall be determined by the information provided by such delivery service on the basis of the details of the mailing as recorded by it. Such notifications may also be communicated by facsimile or by electronic means, as provided for in the Administrative Instructions.

Rule 23
Modes of Notification by the International Bureau

(1) *[Notification of the International Registration]* The notification of the international registration, referred to in Rule 7(3)(ii), or the notification of the withdrawal of a renunciation referred to in Rule 16(3), shall be addressed by the International Bureau to the Competent Authority of each Contracting Party concerned by any means enabling the International Bureau to establish the date on which the notification was received, as provided for in the Administrative Instructions.

(2) *[Other Notifications]* Any other notification by the International Bureau referred to in these Regulations shall be addressed to the Competent Authorities by any means enabling the International Bureau to establish that the notification has been received.

Rule 24
Administrative Instructions

(1) *[Establishment of Administrative Instructions; Matters Governed by Them]* (a) The Director General shall establish Administrative Instructions and may modify them. Before establishing or modifying the Administrative Instructions, the Director General shall consult the Competent Authorities of the Contracting Parties which have direct interest in the proposed Administrative Instructions or their proposed modification.

(b) The Administrative Instructions shall deal with matters in respect of which these Regulations expressly refer to such Instructions and with details in respect of the application of these Regulations.

(2) *[Supervision by the Assembly]* The Assembly may invite the Director General to modify any provision of the Administrative Instructions and the Director General shall act upon any such invitation.

(3) *[Publication and Effective Date]* (a) The Administrative Instructions and any modification thereof shall be published.

(b) Each publication shall specify the date on which the published provisions become effective.

(4) *[Conflict with the Act or These Regulations]* In the case of conflict between, on the one hand, any provision of the Administrative Instructions and, on the other hand, any provision of the Act or these Regulations, the latter shall *prevail*.

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